

Child Support Modification - Research Notes (Informational)

Personal | Texas process overview | Not legal advice

Personal research summary only. This is general information, not legal advice. Confirm anything here with the Texas Office of the Attorney General Child Support Division or a licensed attorney before acting.

Why look at this

The current order was set on income from the trawler years and has not been revisited since the move to the farm. Current salary from the operation is well below that figure. The question is whether and how an order can be reviewed to reflect what is actually earned now.

General Texas process (as researched)

- 1 A support order can generally be reviewed if it has been three years since the last order and the recalculated amount would change by a set threshold, or if there has been a material and substantial change in circumstances.
- 2 A change in income can qualify as a material and substantial change; documentation of current income is the core of the request.
- 3 The Office of the Attorney General offers a review process; a modification can also go through the court that issued the order.
- 4 Until a court actually modifies the order, the existing order stands and must be paid in full.

Documents to gather

- Current pay records and the operation's tax filing showing present income.
- The existing order and the income basis it was calculated on.
- Any change in the custody schedule that bears on the calculation.

Open questions for a professional

- Does the current income gap meet the threshold for review.
- OAG review versus filing directly with the court - which is faster here.
- Timing relative to the custody calendar so nothing disrupts the schedule with Nathan.

Next step is a consult, not a filing. Nothing here gets acted on without talking to the right professional first.

Informational research only. Not legal advice. Any custody-related action requires careful, deliberate handling.